

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jeffrey Mulinelli (S)	Team: Squad #08	CCRB Case #: 201412497	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 12/13/2014 8:15 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 6/13/2016	Precinct: 69
Date/Time CV Reported Sat, 12/13/2014 9:31 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 12/17/2014 1:42 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Christophe Scaperotta	16864	949634	069 PCT
2. POM Pedro Sandoval	01311	949615	069 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Michael Lindsley	03934	904372	069 PCT
2. POM Stephen Andolina	00228	946747	069 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Christophe Scaperotta	Discourtesy: PO Christophe Scaperotta spoke rudely to § 87(2)(b)	A . Unsubstantiated
B . POM Pedro Sandoval	Discourtesy: PO Pedro Sandoval spoke rudely to § 87(2)(b)	B . Unsubstantiated

Case Summary

On December 13, 2014, § 87(2)(b) filed this complaint via phone with the Internal Affairs Bureau [see 02 Board Review].

On December 13, 2014, at 8:15 p.m., PO Christopher Scaperotta and PO Pedro Sandoval received a radio run for an EDP at § 87(2)(b) in Brooklyn. EMTs § 87(2)(b) and § 87(2)(b) also arrived at the residence because the job went over the air as a suicidal EDP. § 87(2)(b) spoke with the police and EMTs about the issue, and PO Sandoval and PO Scaperotta spoke discourteously to § 87(2)(b) throughout the conversation [**Allegations A and B**].

Mediation, Civil, and Criminal Histories

On July 18, 2015, a NOC inquiry was filed with the Office of the New York City Comptroller. Its results will be added to the case file upon receipt [see 15 Board Review].

§ 87(2)(b) opted to mediate this complaint. However, one of the subject officers declined to mediate. The case was returned for investigation on May 11, 2015.

§ 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

This is the first CCRB complaint filed by § 87(2)(b) [see 01 Board Review].

PO Sandoval and PO Scaperotta have both been members of the service for five years. This is the first CCRB complaint filed against either of them.

Investigative Findings and Recommendations

Identification of Subject Officers

§ 87(2)(b)'s complaint was against the first two officers to respond to his residence. According to the testimonies of PO Scaperotta, PO Sandoval, and PO Andolina, as well as the Sprint for this incident, PO Scaperotta and PO Sandoval were the first officers on scene [see 09, 11, and 13 Board Review].

§ 87(2)(b) attributed the allegations to an officer matching PO Sandoval's description, stating that the officer had tan or brown skin, stood 5'9" tall, weighed 190 pounds, had a thicker build than his partner, and spoke with a slight Spanish accent. PO Sandoval's MOS photo revealed that he is a tan-skinned Hispanic who stands 6'2" tall and weighs 192 pounds [see 10 Board Review]. He does not speak with any accent. According to his MOS photo, PO Scaperotta is a white male, standing 5'9" tall, and weighing 169 pounds [see 12 Board Review]. He does not speak with any accent. § 87(2)(b) was shown a photo array on February 4, 2015, but he did not recognize any of the officers from their MOS photos [see 16 Board Review].

§ 87(2)(b) § 87(2)(b) § 87(2)(b) daughter, corroborated that an officer used profanity when speaking to § 87(2)(b). However, she attributed the allegation to an officer more closely matching PO Scaperotta's description. She described the officer as light skinned, not Hispanic, 30 to 40 years old, and 5'5" tall [see 05 Board Review].

PO Sandoval testified that both he and PO Scaperotta spoke with § 87(2)(b) throughout the incident. Specifically, PO Scaperotta stated that § 87(2)(b) closed the front door on his foot, and he asked § 87(2)(b) not to close the door because he was conducting an investigation. § 87(2)(b) alleged that the officer who spoke rudely to him was the officer who had his foot in the door. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation Not Pleaded

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation A) Discourtesy: PO Christopher Scaperotta spoke discourteously to § 87(2)(b)

Allegation B) Discourtesy: PO Pedro Sandoval spoke discourteously to § 87(2)(b)

§ 87(2)(b) testified that two men arrived at his residence on the date of the incident, and they claimed that one of them received a text message from § 87(2)(b)'s daughter, § 87(2)(b) who said that she was going to commit suicide. § 87(2)(b) dismissed the men after § 87(2)(b) § 87(2)(b) denied that she sent text messages. Several minutes later, PO Scaperotta and PO Sandoval arrived with two EMTs and questioned him about suicide threats made by § 87(2)(b) § 87(2)(b). When § 87(2)(b) explained to the police that he believed there was no suicide threat, PO Sandoval allegedly asked, "How the fuck are you living here and don't know what's going on?" § 87(2)(b) informed the officers that he was going to close his door, at which point PO Sandoval allegedly said, "If you pull the door on my fucking foot, I'll come get you." § 87(2)(b) told PO Sandoval that he did not like the police because they were abusive, and if he spoke in the same manner as PO Sandoval, PO Sandoval would choke or handcuff § 87(2)(b) § 87(2)(b). PO Sandoval allegedly called § 87(2)(b) an "asshole," a "motherfucker," and a "jackass." § 87(2)(b)'s statement to IAB was consistent with his CCRB testimony [see 03-04 Board Review].

In her phone statement, § 87(2)(b) stated that she heard PO Scaperotta ask her father, "You don't fucking know what your daughter said?" after her sister, § 87(2)(b) acknowledged that she had taken pills. Admittedly, § 87(2)(b)'s recollection was not full as she was in the bathroom during parts of the incident [see 05 Board Review].

FDNY EMTs § 87(2)(b) and § 87(2)(b) both testified that § 87(2)(b) was uncooperative throughout the incident. Specifically, § 87(2)(b) testified that she or § 87(2)(b) called for police assistance because § 87(2)(b) was so uncooperative. He refused to go in the ambulance with his daughter after it was discovered that she had taken pills, and he yelled at the officers and EMTs throughout the incident. Neither § 87(2)(b) nor § 87(2)(b) remembered hearing any officer use profanity during the incident [see 06-07 Board Review].

PO Stephen Andolina was interviewed for informational purposes before this case was rejected for mediation. PO Andolina and his partner, Sgt. Michael Lindsley, arrived at the scene after PO Scaperotta and PO Sandoval. He made no mention of any profanity used by any officer at the scene [see 08 Board Review].

PO Sandoval testified that he and PO Scaperotta arrived at § 87(2)(b)'s house following receipt of a job involving a suicidal EDP. They knocked on his door but no one answered. The officers visited a downstairs apartment and came back. § 87(2)(b) § 87(2)(b) was at the door when they returned, and she admitted that she had taken pills. The officers were explaining to § 87(2)(b) that she had to go to the hospital, and she was compliant and seemed to want to go. At that point, § 87(2)(b) approached. He was upset and spoke loudly to the officers in an apparent effort to get them to leave. PO Sandoval and PO Scaperotta informed § 87(2)(b) why § 87(2)(b) had to go to the hospital and that an adult was required to escort her because she was a minor. § 87(2)(b) refused to go. PO Sandoval did not remember if § 87(2)(b) attempted to close his door at any point. PO Sandoval did not ask § 87(2)(b) "How the fuck are you living here and you don't know what's going on?" PO Sandoval did not suggest in any way that § 87(2)(b) did not know what was going on in his own house. PO Sandoval did not tell § 87(2)(b) "If you pull the door on my fucking foot, I'll come get you." PO Sandoval did not call § 87(2)(b) an "asshole" or a "motherfucker." PO Sandoval did not call § 87(2)(b) a "jackass" [see 09 Board Review].

PO Scaperotta § 87(2)(g) that § 87(2)(b) was uncooperative. PO Scaperotta observed what he believed was a problem between § 87(2)(b) and the two EMTs who had arrived before the officers, and he stepped closer to the door to see if he could help. § 87(2)(b) attempted to close the door on the officers at one point, but PO Scaperotta had his foot in the doorway and prevented it from closing. He asked § 87(2)(b) not to close the door because he was conducting an investigation. At that point, § 87(2)(b) became combative, calling PO Scaperotta a murderer and stating that PO Scaperotta killed Eric Garner. The door remained open, and § 87(2)(b) acknowledged to the officers and EMTs about five minutes later that she had taken pills. PO Scaperotta also corroborated PO Sandoval's testimony that § 87(2)(b) refused to go in the ambulance with § 87(2)(b) § 87(2)(b) § 87(2)(b) § 87(2)(b)'s aunt, who lived in the downstairs apartment, ultimately accompanied her. PO Scaperotta denied asking § 87(2)(b) "How the fuck are you living here and don't know what's going on?" He did not suggest that § 87(2)(b) did not know what was going on in his own house. PO Scaperotta denied saying, "If you pull the door on my fucking foot, I'll come get you." He did not call § 87(2)(b) a "jackass," an "asshole," or a "motherfucker." PO Scaperotta did not tell § 87(2)(b) that he was in the house with kids and did not know what the fuck was going on. PO Scaperotta denied using any profanity during the incident, and he did not hear any officer do so [see 11 Board Review].

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

It is therefore recommended that **allegations A and B** be closed as **unsubstantiated**.

Pod: 8

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date